

[¶] (2) Why the amendment is necessary and proper; [¶] (3) When the facts giving rise to the amended allegations were discovered; and [¶] (4) The reasons why the request for amendment was not made earlier.” These rules apply to parties represented by legal counsel and self-represented parties. See *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1247.

Defendants argue Plaintiff fails to identify which allegations are being added or deleted. Defendant also argues Plaintiff’s declaration fails to state the effect of the amendment, why the amendment is necessary and proper, and when the facts giving rise to the amended allegations were discovered. The Court agrees.

At bar, Plaintiff failed to comply with requirements (2) and (3) under rule 3.1324(a) and all four requirements under rule 3.1324(b).

Plaintiff attempts to correct these deficiencies for the first time in his reply. This evidence and argument is untimely and there is not good cause shown why this is an exceptional case meriting its consideration. See, e.g., *Plenger v. Alza Corp.* (1992) 11 Cal.App.4th 349, 362, n. 8 (“the inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case”); *Save the Sunset Strip Coalition v. City of West Hollywood* (2001) 87 Cal.App.4th 1172, 1182, n. 3 (“absent justification for failing to present an argument earlier, we will not consider an issue raised for the first time in a reply brief”).

The motion is denied without prejudice.

3. CU0002477 Blanche Sherr vs. Cascade Living Group

The Court continues Plaintiff Blanche Elaine Sherr’s motion for trial preference to May 22, 2026, at 10:00 a.m. in Department 6, to be heard at the same time as Defendant’s motion to compel arbitration and stay proceedings.

4. CU0002670 Jose A. Valdovinos vs. DD Investments, LLC, et al.

Plaintiff Jose A. Valdovinos’ motion for preliminary injunction is granted.

Legal Standard

“A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor.” Code Civ. Proc. § 527(a). “The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial.” *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. See, e.g., *ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Injunctive relief may be granted based on a verified complaint, sworn declarations, affidavits, or any combination of the foregoing provided facts sufficient for relief are contained there. Code Civ. Proc. §§ 527(a), (h); 2009; 2015.5.